

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF KUSHTAYEV AND OTHERS v. RUSSIA

(Applications nos. 24326/18 and 37 others –
see appended list)

JUDGMENT

STRASBOURG

30 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Kushtayev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65 as to the right of organisers or participants of public assemblies not to be tried and punished twice for the same offence; and *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that there has been a breach of Article 11 of the Convention in respect of these applicants;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Péter Paczolay
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	24326/18 08/05/2018	**Taskali Kaliyevich KUSHTAYEV** 1961	Yelanchik Oleg Aleksandrovich Moscow	Protest rally Moscow 05/11/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	15 days of detention fine of RUB 10,000	Moscow City Court 08/11/2017 Moscow City Court 16/04/2018	Art. 5 (1) - unlawful detention - on 05-07/11/2017 the applicant remained in detention after an offence report had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of the proceedings with substantially the same facts underlying his conviction in the first set of the proceedings	5,000
2.	37646/18 26/07/2018	**Maksim Aleksandrovich ZHILIN** 1978	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Perm 07/10/2017	Article 20.2 § 2 of CAO	fine of RUB 20,000	Perm Regional Court 26/01/2018	Art. 5 (1) - unlawful detention - on 07-09/10/2017 escorting to and detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 10 (1) - conviction for making calls to participate in public events (final decision on 26/01/2018 by Perm Regional Court)	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	38962/18 07/08/2018	**Vladimir Sergeyevich ASTAFYEV** 1994	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 07/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	39066/18 07/08/2018	**Vladislav Dmitriyevich ZHUKOV** 1998	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 07/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	39070/18 07/08/2018	**Artemiy Sergeyevich KOROLEV** 1999	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 07/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	40393/18 14/08/2018	**Anastasiya Andreyevna ANDREYEVA** 1995	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 1 of CAO	fine of RUB 20,000	Volgograd Regional Court 21/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	40573/18 18/07/2018	**Yegor Olegovich RYABCHENKO** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	"Voters' Strike" rally St Petersburg 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 19/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
8.	41191/18 20/08/2018	**Vladimir Mikhaylovich KRUGLYAKOV** 1988	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 27/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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9.	41307/18 14/08/2018	**Salavat Shamgunovich SABIROV** 1974	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 21/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	41309/18 14/08/2018	**Roman Olegovich ZAYTSEV** 1989	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 1 of CAO	fine of RUB 20,000	Volgograd Regional Court 21/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station from compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	42033/18 20/08/2018	**Vladimir Stepanovich TELPUK** 1966	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018 Rally to support A. Navalnyy Volgograd 31/01/2021	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Volgograd Regional Court 27/02/2018 Volgograd Regional Court 10/03/2021	Art. 5 (1) - unlawful detention - on 28/01/2018 and 31/01/2021 escorting to and detention in a police station for and after compiling offence reports; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in two sets of the administrative-offence proceedings	5,000
12.	42034/18 20/08/2018	**Yelena Viktorovna SHEINA** 1963	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 27/02/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report	4,000

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13.	42073/18 24/05/2018	**Aleksandr Valeryevich KOLODKA** 1998	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 01/03/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	42829/18 24/08/2018	**Tatyana Alekseyevna KHOKHLOVA** 1957	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 5,000	Volgograd Regional Court 01/03/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	43204/18 28/08/2018	**Sergey Viktorovich LYAKHOV** 2000	Benyash Mikhail Mikhaylovich Sochi	Rally to support A. Navalnyy Krasnodar 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 28/03/2018		3,500
16.	43426/18 27/08/2018	**Alena Nikolayevna KORNILKOVA** 2000	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Perm 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Perm Regional Court 27/02/2018		3,500
17.	43942/18 05/09/2018	**Mariya Mikhaylovna YEVTYUNINA** 1998	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 14/03/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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18.	44286/18 03/09/2018	**Vladimir Albertovich IVAKHNENKO** 1973	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Rostov-on-Don 24/12/2017	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Rostov Regional Court 13/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
19.	44294/18 04/09/2018	**Galina Alekseyevna ZABOLOTNEVA** 1970	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 14/03/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	44689/18 13/09/2018	**Konstantin Sergeyevich DNEPROV** 1978	Kholodtsova Inna Vadimovna Moscow	Protest rally Moscow 04/11/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 14/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
21.	45221/18 14/09/2018	**Nikita Aleksandrovich VYSHKVARKA** 1996	Yatsenko Irina Aleksandrovna Moscow	Anticorruption rally Moscow 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 14/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
22.	45675/18 19/09/2018	**Ivan Gennadyevich SMIRNOV** 1990	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Volgograd 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 21/03/2018	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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23.	45858/18 16/09/2018	**Irina Ivanovna STRUBINA** 1963	Yatsenko Irina Aleksandrovna Moscow	Protest rally Moscow 05/11/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/03/2018	Art. 5 (1) - unlawful detention - on 05/11/2017 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	45906/18 12/09/2018	**Marina Frankovna NATAPOVA** 1955	Prikhodina Yelizaveta Aleksandrovna Moscow	Rally for freedom to political prisoners Moscow 30/06/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 30/03/2018	Art. 5 (1) - unlawful detention - on 30/06/2017 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	46176/18 21/09/2018	**Sergey Vladimirovich GALENKO** 1977	Zhdanov Ivan Yuryevich Vilnius	"Voters' Strike" rally Moscow 28/01/2018	Article 19.3 § 1 of CAO	7 days of detention	Moscow City Court 22/03/2018	Art. 5 (1) - unlawful detention – on 28-29/01/2018 detention in a police station after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 6 (1) - and Art. 6 (3) (d) - unfair trial in view of restrictions on the right to examine witnesses - the right to examine police officers whose pre-trial statements or reports were used for convicting the applicant	5,000
26.	46401/18 21/09/2018	**Polina Aleksandrovna SIDELNIKOVA** 1981	Valiulin Sergey Aleksandrovich Vladivostok	"Voters' Strike" rally Vladivostok 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 18/04/2018		3,500

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27.	46911/18 12/09/2018	**Alisa Georgiyevna BORTNIK** 1996	Pershakova Yelena Yuryevna Moscow	Anticorruption rally Perm 07/10/2017	Article 20.2 § 5 of CAO	20 hours of community work	Perm Regional Court 12/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
28.	46939/18 19/09/2018	**Timur Ramilyevich ISANBAYEV** 1999	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally to support A. Navalnyy Novosibirsk 30/09/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 20/03/2018		3,500
29.	47025/18 25/09/2018	**Irina Vladimirovna KHOMYAKOVA** 1997	Zubarev Dmitriy Vladimirovich Vladivostok	"Voters' Strike" rally Vladivostok 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 12/03/2018 (received not earlier than 25/03/2018)		3,500
30.	47195/18 29/09/2018	**Aleksandr Dmitriyevich YANTURAYEV** 1971	Glukhov Aleksey Vladimirovich Novocheboksarsk	"Voters' Strike" rally Ufa 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Bashkortostan Republic 02/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
31.	48410/18 01/10/2018	**Sergey Pavlovich DERKACHEV** 1992	Zubarev Dmitriy Vladimirovich Vladivostok	"Voters' Strike" rally Vladivostok 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 02/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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32.	48893/18 05/10/2018	**Aleksandr Nikolayevich KHOTS** 1957	Vlasov Aleksey Valeryevich Tula	"Voters' Strike" rally Tula 28/01/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 04/04/2018 (received not earlier than 12/04/2018)	Art. 5 (1) - unlawful detention - on 28/01/2018 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
33.	49691/18 12/10/2018	**Dmitriy Stanislavovich LAZAREV** 1963	Memorial Human Rights Centre Moscow	Protest rally Moscow 08/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/04/2018	Art. 5 (1) - unlawful detention - on 08/10/2017 escorting to a police station for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
34.	49975/18 11/10/2018	**Nadezhda Anatolyevna KOKOYEVA** 1994	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Moscow 22/01/2018	Article 20.2 § 8 of CAO	fine of RUB 300,000	Moscow City Court 12/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	7,400
35.	49977/18 10/10/2018	**Mark Yuryevich TUMANOV** 1972	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 19.3 § 1 of CAO	5 days of detention	Voronezh Regional Court 18/06/2018	Art. 5 (1) - unlawful detention - on 05-06/05/2018 detention in a police station for and after compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
36.	50032/18 10/10/2018	**Irina Georgiyevna SOTNIKOVA** 1953	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 5,000	Voronezh Regional Court 19/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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37.	50051/18 10/10/2018	**Mstislav Igorevich PISMENKOV** 1991	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Tyumen 05/05/2018	Article 20.2 § 8 of CAO	fine of RUB 200,000	Tyumen Regional Court 06/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	6,200
38.	50053/18 10/10/2018	**Artem Alekseyevich MAKHONOV** 1993	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 04/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

[1] Plus any tax that may be chargeable to the applicants.